

22AHCV00029 22AHCV00029

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-09-21

Motion: MOTION FOR ORDER PERMITTING PLAINTIFF TO APPEAR REMOTELY AT TRIAL

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Case Number: 22AHCV00029 Hearing Date: September 21, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

XIAO FAN
PENG, et al.,

Plaintiff(s),

vs.

YUN
XIANG TSENG, et al.,

Defendant(s).

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CASE NO.: 22AHCV00029

[TENTATIVE]

ORDER RE: MOTION FOR ORDER PERMITTING PLAINTIFF TO APPEAR REMOTELY AT
TRIAL

Dept.

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8:30

a.m.

September

21, 2026

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I.

INTRODUCTION

Plaintiff Xiao Fan Peng ("Plaintiff")

moves for an order permitting her to appear remotely at the trial scheduled for November 8, 2026. The motion is made pursuant to Code of Civil Procedure section 367.75 and CRC 3.672. Plaintiff argues that a remote appearance is necessary because she is a resident of China, currently resides in China, does not possess a visa to enter the United States, and would be subjected to substantial hardship and expense if required to appear in person at trial.

On August 27, 2026, the Court continued the hearing on Plaintiff's motion to allow for supplemental briefing. Plaintiff filed an additional declaration on September 11, 2026, while Defendant filed one on September 17, 2026.

II.

LEGAL

STANDARD

Except as otherwise provided by law, upon any party's motion, the court may conduct a trial through the use of remote technology, absent a showing by the opposing party as to why a remote appearance or testimony should not be allowed. (Code Civ. Proc., § 367.75, subd. (d)(10).) "The court may require a party to appear in person at a proceeding ... (1) If the court determines on a hearing-by-hearing basis that an in-person appearance would materially assist in the determination of the proceeding or in the effective management or resolution of the case." (CRC 3.672, subd. (d)(1); see Code Civ. Proc., § 367.75, subd. (b)(3).)

III.

DISCUSSION

Plaintiff wishes to testify remotely from China on the grounds that she does not possess a visa to enter the United States and that traveling to the United States for travel would cause substantial hardship and expense, including financial expenses and difficulties managing her personal and professional responsibilities.

In opposition, Defendant raises several legitimate questions regarding the legality of providing testimony through video under Article 277 of the Chinese Civil Law ("Article 277"). Article 227 provides that "no foreign authority or individual is allowed to serve process, conduct investigation, or obtain evidence within the borders of People's Republic of China without permission" from the country's Central Authority.

In a supplemental declaration filed on September 11, 2026, Plaintiff explains that her re-entry permit into the United States expired on July 26, 2026, she has abandoned her green card, and that her only way to gain entry into the United States is through a B1/B2 visa. Plaintiff

states that she applied for a travel permit to Hong Kong and Macau on September 2, 2026. She also applied for a B1/B2 visa on September 4, 2026. Her B1/B2 visa application is currently pending and a consular interview is scheduled for November 12, 2026. Therefore, Plaintiff now requests permission to testify remotely from Hong Kong, specifically a private guest room at the Hong Kong Sky City Marriott Hotel, 1 Sky City Road East, Hong Kong International Airport, Lantau Island. (Supp. Peng Decl., ¶ 13.) She makes numerous representations regarding the technology that will be available and her conduct, while offering to comply with any request to position the camera (or cameras) to ensure that there will be no undisclosed person in the room and that no one will coach, signal, or communicate about the substance of her testimony, and that she will not review any notes, devices, or documents other than exhibits, documents, and materials authorized by the Court. (Id., ¶¶ 16-17.)

In opposition, Defendant argues that the motion should be denied because Plaintiff failed to act diligently. Defendant also argues that remote testimony would materially impair cross-examination because “the jury’s ability to observe Plaintiff’s her full demeanor, body language, and spontaneous reactions would be limited to what a single camera frame captures.” (Stoller Decl., ¶ 9.) Defendant additionally raises questions regarding the competency of Plaintiff’s supplemental declaration because Plaintiff’s declaration is entirely in English while Plaintiff requests a Mandarin-English interpreter and states that Mandarin is her primary language. (Id., ¶ 10.)

Having considered the moving, opposing, reply, and supplemental filings, the Court first emphasizes that the only reason Plaintiff applied for the visa and permit at this late stage appears to be because the Court pointed out at the last hearing, on August 27, 2026, that she stated that she did not have a visa, not that she had made any attempt to obtain one or had been denied one.

Plaintiff filed this case and availed herself of this Court’s jurisdiction nearly five years ago. That at some point along the way Plaintiff took steps that made it difficult for her to return to the United States to take care of her business affairs, and this litigation in particular, means that Plaintiff has placed herself in this position of unavailability. On the other hand, Defendant’s insistence that Plaintiff appear in person, while refusing to agree to continue the trial date, places the Court in an impossible position.

The examination of witnesses is more effective and compelling to the jury if the witnesses appear in person, particularly when the witness is a party, in this case the Plaintiff. Testimonial credibility appears important in this case inasmuch as it is not a predominantly "paper" case. Thus, since Plaintiff's consular interview is scheduled for November 12, 2026, in Beijing, Plaintiff's counsel can inform the Court as to the status of Plaintiff's visa application on the same day given the time difference. The Court therefore continues the hearing on this motion to November 12, 2026, at 8:30 a.m. and will set the trial date on that date. The final status conference remains as currently scheduled and the Court expects that the parties will have complied with the jury trial preparation order to the letter so that trial may commence not later than November 16, 2026. The trial date related discovery deadlines are not continued and remain related to the November 2, 2026, trial date.

IV.

CONCLUSION

The hearing on this motion is CONTINUED to November 12, 2026, at 8:30 a.m.

The November 2, 2026, trial date is vacated and the Court will set a new trial date on November 12, 2026.

Plaintiff to give notice.

Dated
this 21st
day of September 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit

on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.